☐ CIRCUIT COURT ☒ DISTRICT COURT OF MARYLAND FOR Montgomery County-Rockville (DC) (City/County)

Located at 191 East Jefferson Street, Rockville, MD 20850 (Court Address) Case No. D-06-CR-23-999999

Tracking # _____

STATE OF MARYLAND vs. María-Alejandra O'Shaughnessy (Defendant) 11/30/1991 (DOB)

# PETITION FOR EXPUNGEMENT OF RECORDS (ACQUITTAL, DISMISSAL, PROBATION BEFORE JUDGMENT, NOLLE PROSEQUI, STET, NOT CRIMINALLY RESPONSIBLE, NO FINDING, OR TRANSFER TO JUVENILE DISPOSITION)

(In this petition, references are to the Annotated Code of Maryland, and references to "crime," "criminal action," and "civil offense or infraction" refer to any criminal or civil offense, other than a violation of the vehicle or traffic laws, ordinances, or regulations, that does not carry a possible sentence of imprisonment.)

1. (Check one of the following boxes) On or about 06/01/2022 (Date), I was ☐ arrested, ☒ served with a summons, or ☐ served with a citation by an officer of the _____ (Law Enforcement Agency) at Montgomery County, Maryland, as a result of the following incident Alleged presence on private property after a request to leave, arising from one identified incident.
2. I was charged with the offense of Trespass on private property.
3. On or about 09/07/2023 (Date), the charge was disposed of as follows (check all that apply, making sure that each statement is true and correct):

☐ I was **acquitted/found not guilty** of the charge. Either three (3) years have passed since the disposition, or a General Waiver and Release is attached.

☐ the charge was otherwise **dismissed**. Either three (3) years have passed since that disposition, or a General Waiver and Release is attached.

☐ a **probation before judgment** was entered on the charge, but the **conduct on which the charge was based is no longer a crime**.

☒ a **probation before judgment** was entered on the charge, and the **conduct on which the charge was based is still a crime**. The charge did not allege a violation of Criminal Law Article, §§ 2-503, 2-504, 2-505, or 2-506; Criminal Law Article, § 3-211; or former Article 27, § 388A or § 388B. Either (a) at least three (3) years have passed since that disposition, or (b) I have been discharged from probation, whichever is later. Except for any conviction of a charge where the conduct on which the charge was based is no longer a crime, I was not convicted of any crime during the three-year period immediately following entry of the probation before judgment. I am not now a defendant in any pending criminal action.

☐ a **probation before judgment** was entered on violation of Transportation Law Article § 21-902 (a) or (b). The charge did not allege a violation of Transportation Article, § 21-902 (c), (d), (h), or (i). At least fifteen (15) years have passed since the date I was discharged from probation. In the fifteen (15) years since being discharged from probation, I have not received another probation before judgment for a violation of § 21-902 of the Transportation Law Article; I was not convicted of any crime, other than a minor traffic violation or a crime where the act on which the conviction is based is no longer a crime. I am not now a defendant in any pending criminal action.

☐ a **nolle prosequi** was entered. Either three (3) years have passed since that disposition, or a General Waiver and Release is attached. I am not now a defendant in any pending criminal action.

☐ a **stet** was entered. Three (3) years have passed since that disposition. I am not now a defendant in any pending criminal action.

☐ I was found **not criminally responsible** for a crime specified in Criminal Procedure Article, § 10-105 (a)(9) or (a)(10). Three (3) years have passed since the finding of not criminally responsible. I am not now a defendant in any pending criminal action.

☐ the charge, which is listed in CP §10-110 (a) (1), (2), or (3), was disposed of with a **no finding** designation or was included in a case designated by the court as having been terminated without finding.

4. ☐ The case was **compromised or dismissed** pursuant to Criminal Law Article, § 3-207, former Article 27, § 12A-5, Article 10, § 37. Three (3) years have passed since that disposition.
5. ☐ The case was **transferred** to the juvenile court pursuant to Criminal Procedure Article, §§ 4-202 or 4-202.2. (Note: This petition must be filed in the court that issued the order of transfer. The expungement is only of the records in the criminal case, not the records in the juvenile court. See Criminal Procedure Article, § 10-106.)
6. ☐ The case began in one court and was **transferred** to another court other than the juvenile court. (Note: This petition must be filed in the court to which the case was transferred.)

I request the court to enter an Order for Expungement of all police and court records pertaining to the above arrest, detention, confinement, and/or charges.

I solemnly affirm under the penalties of perjury that the contents of this petition are true to the best of my knowledge, information, and belief, and that the charge to which this petition relates was not for any non-incarcerable violation of the vehicle laws of the State of Maryland, or any traffic law, ordinance, or regulation, nor is it part of a unit the expungement of which is precluded under Criminal Procedure Article, § 10-107.

| Signature of Attorney | Attorney Number | Date |
|---|---|---|
| Printed Name | | |
| Street Address | | |
| City, State, Zip | Telephone | |
| E-mail | Fax | |

| Signature of Defendant | Date |
|---|---|
| María-Alejandra O'Shaughnessy (Printed Name) | |
| 1188 Upper Coastal Crossing Road, Apt 14B (Street Address) | |
| Gaithersburg, MD 20878-2214 (City, State, Zip) | 301-555-0199 (Telephone) |
| maria.oshaughnessy@example.org (E-mail) | Fax |

# Maryland expungement: before you file

**SYNTHETIC QA EXAMPLE - DO NOT FILE**

The first page is the official CC-DC-CR-072A petition. These following pages are instructions for you, not additional pleadings or a court order.

Selected disposition: pbj. Case: D-06-CR-23-999999. Prepared using the facts supplied as of 2026-09-07.

COMPLETE BEFORE FILING: 1 item(s) below remain unresolved. The petition is not ready to sign and file until those items are resolved.

Filing court: Montgomery County-Rockville (DC). 191 East Jefferson Street, Rockville, MD 20850

Confirm the venue against the case docket. Normally use the court in which the proceeding began. For an adult-court transfer use the receiving court. For a juvenile transfer use the original court that entered the transfer, and request only the criminal-case records. An appealed case may require filing in the appellate court; obtain help rather than assume the original court is still correct.

Use free Maryland Judiciary Case Search and obtain any missing docket/disposition records from the clerk. Account for every charge in the incident and confirm the unit rule in Criminal Procedure 10-107. Do not select only an attractive charge while hiding another charge in the unit.

The ordinary printed waiting-period statement used in this packet is met no earlier than 09/07/2026. A future treatment or probation completion is not a completed event.

Do not use this petition for an ordinary conviction, a pardon application, or a cannabis-conviction petition. Do not use it as a substitute for CC-DC-CR-072C on the early automatic-expungement route. When all charges qualify under 10-105.1 and were disposed on/after October 1, 2021, check the automatic-expungement status before filing an unnecessary petition.

For an acquittal, dismissal or nolle before the ordinary three-year period, a general waiver and release may be required. It gives up tort claims arising from the charge. No release is attached or elected in this ordinary packet. Do not falsely check the statement that a release is attached. Get the correct early/release packet and consider legal advice before giving up claims.

# Finish, file, and follow the result

**SYNTHETIC QA EXAMPLE - DO NOT FILE**

Law Enforcement Agency: This fact was not supplied. Complete this printed blank from the case record or your own accurate contact information.

Review the date of birth, case number, agency, incident, every charge and every checked statement. If any known value was not fitted, the complete value is disclosed above; it was not shortened on the court form. Correct the source fact or obtain help with a permitted continuation, then re-render or complete the blank legibly.

Sign and date the Defendant block yourself after checking every statement. Leave the attorney block blank when self-represented. Do not sign for a witness, notary, clerk or judge. This 072A form uses an affirmation under penalties of perjury and does not require notarization.

FILING FEE: $0 for this 072A nonconviction petition. Do not pay the $30 guilty-disposition fee and do not add a prepaid-costs waiver to a free filing. A waiver of tort claims is not a fee waiver.

Make and retain a complete copy before filing. File the signed official petition with the proper clerk in person, by mail, or through MDEC when using electronic filing. Confirm any required copy count and the current mailing address with that clerk; do not email the petition to a general website-contact address. Once registered to e-file, follow the continuing e-filing requirement.

SERVICE: the court serves the State's Attorney. You do not need to certify that you served anyone. This packet contains no participant certificate of service and no proposed order.

AFTER FILING: the State's Attorney ordinarily has 30 days after service to object. A timely objection requires a hearing. If an objection, hearing, disputed unit, excluded PBJ offense or appeal arises, keep all papers and promptly seek a lawyer or legal-aid help; do not ignore notices or response deadlines.

AFTER AN ORDER: unless stayed on appeal, record custodians must report compliance to the court and you within 60 days after entry. Keep the order and Certificates of Compliance. A filed petition or a signed order alone does not prove all record holders complied. Follow up with the clerk if certificates or corrections remain missing.

Keep your original case/disposition records before expungement, especially for immigration or other proceedings outside Maryland law. Maryland expungement does not guarantee that every federal, immigration, licensing or private-background-check question can be answered the same way.

Court help: Maryland Court Help Center, 410-260-1392. Bring your docket, dispositions, this packet and any objection or notice. This packet supplies forms and instructions, not representation or a promise of an expungement.

# Official sources and packet contents

**SYNTHETIC QA EXAMPLE - DO NOT FILE**

CC-DC-CR-072A, revision 10/01/2026: the held official form is the one-page filing in this packet. The other pages are participant instructions. No new petition template was drawn.

Maryland Criminal Procedure 10-105 (instrument, waiting periods, venue, service, objections and compliance), 10-105.1 (automatic expungement), 10-107 (unit rule), and Maryland Rule 4-510 (custodian compliance).

https://mgaleg.maryland.gov/mgawebsite/Laws/StatuteText?article=gcp&section=10-105

https://www.mdcourts.gov/legalhelp/expungement

https://www.mdcourts.gov/district/directories/courtmap

https://www.mdcourts.gov/guideandfile

https://www.mdcourts.gov/helpcenter/inperson/dc

Source and legal-page checks: CC-DC-CR-072A form face October 21, 2026; statutes and legal pages September 7, 2026. A later law or form edition needs revalidation. This renderer does not enable live delivery, payment, or a commercial route.